

23GDCV02629 23GDCV02629

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-04

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Case Number: 23GDCV02629 Hearing Date: August 4, 2026 Dept: X

#13 - NANCY MENDOZA vs FORD MOTOR COMPANY, et al.

Plaintiff's motion

for attorneys' fees, costs, and expenses is DENIED as untimely.

Plaintiff's motion

for relief under Code of Civil Procedure section 473(b) is DENIED.

Under California

Rules of Court, Rule 3.1702, a motion claiming attorney's fees before trial court judgment must be served and filed within the time for filing a notice of appeal. Under California Rules of Court,

Rule 8.104, the ordinary time to appeal is 60 days after service of a notice of entry or a filed-endorsed copy of the judgment, or 180 days after entry of judgment if no such notice is served.

The clock starts to

run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock). (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649.)

Discretionary relief

is available under Code of Civil Procedure section 473 for a judgment, dismissal, order, or other proceeding taken against a party through mistake, inadvertence, surprise, or excusable neglect.

In determining

whether the attorneys mistake or inadvertence was excusable, the court inquires whether a reasonably prudent person under the same or similar

circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) In other words, the discretionary relief provision of section 473 only permits relief from attorney error fairly imputable to the client, i.e., mistakes anyone could have made. (*Ibid.*) Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. (*Ibid.*)

The fee motion was untimely.

The Court need not decide whether Plaintiff's November 12, 2025 notice triggered a 60-day deadline, because the fee motion was untimely even under the more generous 180-day outside limit. The operative dismissal occurred on October 1, 2025, when the Court ordered the complaint dismissed without prejudice under Code of Civil Procedure section 664.6. Plaintiff was required, at the latest, to serve and file the fee motion within 180 days of that dismissal. Plaintiff did not file the fee motion until June 30, 2026, which was more than 180 days after October 1, 2025.

Mandatory relief is unavailable.

Plaintiff filed the fee motion and the section 473(b) motion at the same time on June 30, 2026. By its terms, Code of Civil Procedure section 473(b) only offers mandatory relief for defaults and resulting default judgments. Thus, mandatory relief is unavailable.

Plaintiff has not shown excusable neglect warranting discretionary relief.

Plaintiff's papers show that counsel's office intended to calendar a 180-day deadline, but instead calendared October 1, 2026 and did not discover the mistake until June 26, 2026. (Jacobson Decl., ¶ 7.) Plaintiff also asserts that the office discovered the error during an internal audit and then filed the instant motion four days later. (Jacobson Decl., ¶ 7.)

That showing establishes prompt action after discovery, but it does not establish excusable

neglect. The motion does not explain how a deadline counsel says was understood to be 180 days after dismissal became a date one full year after dismissal. Nor do the papers explain what office procedure produced that error or why the error remained undetected for months after the dismissal. The inconsistency between the notice of motion's description of a "three-day delay" and counsel's description of a one-year miscalendaring further weakens the showing. (Motion, p. 1; Jacobson Decl., Jacobson Decl., ¶ 7.)

The Court must determine whether a reasonably prudent person under similar circumstances might have made the same mistake. On this record, the Court cannot make that finding. Plaintiff has not established entitlement to mandatory relief, and the present record does not establish excusable neglect sufficient to warrant discretionary relief.

Unless waived by the parties, Plaintiff is to give notice.